Precedent memo: Lumen Health v. Castillo

Multnomah County Circuit Court, decided 2023-10-30 - memo by the employment group

1. Holding

A nurse's retaliation claim survived summary judgment because the schedule cut followed her safety complaint by 9 days.

2. Facts

Castillo filed a staffing complaint on 2023-02-01; her shifts were cut from 4 to 2 a week on 2023-02-10.

3. Firm position

We represented Castillo. Timing alone carried summary judgment.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.